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MERCHANT TERMS AND CONDITIONS

Vero360 Super App — Providers, Merchants & Service Professionals

Field	Detail
Company	Vero360 Limited
Applies To	All Verified Providers, Merchants and Service Professionals ("Merchants")
Registration	Registered with the Malawi Business Registry Services — Registration No. COY-J7RCG5G; TPIN 71241378
Registered Office	Area 14, Lilongwe, Malawi
Contact	info@vero360.app
Document Status	LEGALLY BINDING MERCHANT AGREEMENT — DRAFT PENDING LEGAL REVIEW

Binding Agreement: By registering as a provider or merchant on the **Vero360** Super App (referred to as the Application or App), you enter into a legally binding agreement (this "**Agreement**") with **Vero360** Limited ("**Vero360**", "we", "us", "our"), governed by the laws of Malawi including the **Consumer Protection Act 2003**, **Competition and Fair Trading Act**, the **Data Protection Act, 2024 (Act No. 3 of 2024)**, and all applicable regulations or directives issued by the **Malawi Communications Regulatory Authority (MACRA)**, the **Reserve Bank of Malawi (RBM)**, and the **Malawi Revenue Authority (MRA)**. Please read this **Agreement** carefully before listing any service.

PART A — DEFINITIONS AND INTERPRETATION

Definitions

"Agreement" means these **Merchant** Terms and Conditions, including all tables, schedules, and any policies incorporated by reference.

"Commission" means the fee charged by **Vero360** on a completed **Transaction**, determined in accordance with the **Commission Schedule** in Part D and added on top of the **Merchant**'s price.

"Commission Schedule" means the schedule of price bands and the corresponding **Commission** amounts set out in Part D.

"Confidential Information" means any non-public business, technical, or financial information disclosed by one party to the other in connection with this **Agreement**.

"Content" means text, photographs, pricing, and other material submitted by a **Merchant** for a listing.

"Force Majeure Event" has the meaning given in clause 38.

"Merchant" means any individual, sole trader, or registered business approved by **Vero360** to list goods or services on the **Platform**, including ride-hailing drivers and courier/delivery partners.

"PawaPay" means the third-party payment gateway used by **Vero360** to collect payments, process subscriptions and **Commission**, and facilitate payouts and **Wallet** withdrawals on the **Platform**.

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"Platform" means the **Vero360** Super App and associated websites, APIs, and services.

"Required Procedures" means the steps that must be completed before funds are released, including completion of the service or delivery, any confirmation required under this **Agreement**, the absence of an open dispute, and applicable verification and compliance checks.

"Settlement" means the release of **Transaction** proceeds, being the **Merchant**'s price in full, to a **Merchant**'s **Wallet**, as set out in Part D.

"Transaction" means a completed order, booking, or trip initiated through the **Platform**.

"Verified Badge" means the status awarded to a **Merchant** on successful completion of **KYC** verification under clause 6.

"Wallet" means the in-app balance of a **Merchant** to which released funds are credited and from which funds may be withdrawn.

Interpretation

1. Headings are for convenience only and do not affect interpretation.
2. Words importing the singular include the plural and vice versa.
3. A reference to a statute includes any amendment or re-enactment of it.
4. In the event of a conflict between the body of this **Agreement** and a table, the body text prevails unless the table expressly states otherwise.

PART B — MERCHANT ELIGIBILITY AND ONBOARDING

Who Can Register as a Merchant

Merchant Type	Examples	Additional Requirements
Individual service provider	Plumber, electrician, cleaner, caterer, photographer	Valid National Identity Card (NID); relevant skill or trade certification
Sole trader	Market vendor, home baker, tailor, mobile hairdresser	Valid NID; proof of business activity
Registered business	Restaurant, lodge, BnB, transport company	MBRS registration certificate; business NID
Ride-hailing driver	Taxi driver, private hire vehicle operator	Valid driving licence; vehicle roadworthiness certificate; NID; proof of applicable insurance
Courier / delivery partner	Motorbike courier, delivery van operator	Valid driving licence; NID; proof of insurance
Accommodation host	BnB owner, lodge operator, rental homeowner	NID; property ownership or rental authority letter

5. All **Merchants** must be at least 18 years of age. **Vero360** reserves the right to request proof of age during **KYC** verification.

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Know-Your-Client (KYC) Verification and Onboarding Process

6. The following process shall be implemented when onboarding a merchant on the application.

Step	Action Required	Timeline	Outcome
1	Download Vero360 app and register with a valid Malawian phone number	Day 1	Account created
2	Phone number verified via SMS OTP	Immediate	Account activated — basic access
3	Submit NID photo and business information	Day 1	KYC under review
4	Pay Verified Seller Setup Fee (see clause 5)	Day 1	Payment confirmed
5	Operations team reviews NID and business information	Within 24 hrs	Approval or rejection with reasons
6	Verified Badge awarded	Upon approval	Full merchant access granted

7. The stipulated timelines are mere guidelines and the process may take longer than expected due to other factors including system availability, size and quality of documents being uploaded.

Verified Seller Setup Fee

8. A **Verified Seller Setup Fee** currently at **MWK 5,000** shall apply to **KYC** processing, **NID** review, and **Verified Badge** activation. This fee covers administrative and verification costs incurred by **Vero360** regardless of outcome.

9. Once **KYC** review has commenced, the fee is non-refundable, including where an application is not approved. **Vero360** will clearly disclose this non-refundable status to the applicant before payment is collected.

PART C — LISTING STANDARDS AND MERCHANT OBLIGATIONS

Listing Standards

10. All listings must comply with the following standards, reflecting obligations under the laws of Malawi including the **Consumer Protection Act 2003** regarding accurate representation of goods and services:

Listing Element	Requirement
Title	Clear, accurate, and not misleading
Description	Full and honest description of service or product
Photos	Real photos of the actual product/service — no stock images
Pricing	All prices clearly stated in Malawian Kwacha (MWK)
Availability	Listings must reflect actual availability — deactivate when unavailable
Category	Listed under the correct service or product category
Location	Accurate service area or delivery zone specified

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Listing Element	Requirement
Turnaround	Realistic and achievable delivery or service completion timeframe

11. The **Merchant** shall comply with the **Merchandise** Listing **Standards** ("**Standards**") annexed to this agreement which shall supplement this Part C (Listing **Standards** & **Merchant** Obligations) of the Terms and Conditions and apply specifically to **Vendors** listing physical, tangible merchandise ("**Merchandise**") for sale through the **Vero360** e-commerce category. Where the **Merchandise** Listing **Standards** conflict with these general **Merchant** Terms and Conditions on a matter specific to physical goods, the **Merchandise** Listing **Standards** shall prevail.

Prohibited Listings

The **Merchant** acknowledges that listing prohibited items or services may constitute a criminal offence under the **Penal Code (Cap. 7:01)** and other Malawian legislation. **Vero360** reserves the right to report suspected illegal activity to law enforcement authorities and other regulators.

- Illegal drugs, narcotics, or any substance prohibited under the **Pharmacy, Medicines and Poisons Act**
- Unlicensed firearms, weapons, ammunition, or explosive materials
- Counterfeit, pirated, or stolen goods of any kind
- Alcohol or tobacco products without the required **MRA** licence
- **Services** or content that exploit, harm, or endanger children
- Human trafficking, forced labour, or any form of exploitation
- Wildlife products prohibited under the **Wildlife Conservation Act**
- Any service that contravenes a Malawian law, licence requirement, or professional standard

Order Management Obligations

Obligation	Standard Required	Consequence of Failure
Order response time	Accept or reject within 30 minutes of notification	Auto-cancellation; negative rating impact
Service delivery	Deliver exactly as described within the agreed timeframe	Dispute, refund, and rating penalty
Communication	Respond to customer messages within 2 hours during business hours	Rating reduction; possible suspension
Cancellations	Notify customer immediately with valid reason if cancellation is necessary	Negative rating; repeated cancellations may lead to suspension
Quality standard	Maintain a minimum 3.0-star average rating	Below 2.5 stars: account review; below 2.0: suspension
Dispute cooperation	Respond to a dispute investigation within 48 hours with evidence	See clause 24 (Dispute Resolution)

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PART D — PAYMENTS, COMMISSIONS AND SUBSCRIPTIONS

Commission and Payment Terms

1. **Vero360's Commission** on a completed **Transaction** is determined in accordance with the **Commission Schedule** below, by reference to the price set by the **Merchant**. **Commission** is added on top of the price set by the **Merchant** and is not deducted from it.
2. **Vero360** may introduce additional, separately disclosed fee categories (for example, payment-gateway pass-through costs or regulatory levies) with at least **30 days'** prior written notice to **Merchants**. Such fees are not part of, and do not increase, the **Commission** described in clause 1 of this Part.
3. **Vero360** may review and adjust the **Commission Schedule** with at least **30 days'** written notice. A **Merchant** who does not accept a revised **Commission Schedule** may terminate this **Agreement** without penalty under clause 27 before the change takes effect.

Commission Schedule

The amount added across each price band is as follows:

Merchant Price (set in the app)	Amount Added (Commission)
MWK 100 – 5,000	MWK 10 – 500
MWK 5,001 – 10,000	about MWK 450 – 900
MWK 10,001 – 20,000	about MWK 800 – 1,600
MWK 20,001 – 50,000	about MWK 1,400 – 3,500
MWK 50,001 – 100,000	about MWK 3,000 – 6,000
MWK 100,001 – 500,000	about MWK 5,000 – 25,000
MWK 500,001 – 2,000,000	about MWK 20,000 – 80,000
MWK 2,000,001 – 10,000,000	about MWK 66,000 – 330,000
MWK 10,000,001 – 20,000,000	about MWK 300,000 – 600,000
MWK 20,000,001 and above	from about MWK 500,000

Commission is added to the customer total and is never deducted from the merchant's price. Amounts are shown as ranges across each price band. Commission at band starts is rounded to the nearest whole kwacha. Commission applies to the merchant-entered price; payment processing and payout arrangements are separate.

> **Example:** Merchant price MWK 5,000 + amount added MWK 500. **The customer pays MWK 5,500; the merchant price remains MWK 5,000.**

Service Category	Commission	Release to Wallet*
Ride-Hailing (Vero Ride)	Per Commission Schedule	On trip completion

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Service Category	Commission	Release to Wallet*
Vero Courier and Delivery	Per Commission Schedule	On confirmed delivery
Vero Bike	Per Commission Schedule	On trip completion
Food Delivery	Per Commission Schedule	On order confirmation
Airport Pickup	Per Commission Schedule	On trip completion
E-Commerce Sales	Per Commission Schedule	Courier-delivered orders: on receipt confirmation, or automatically 7 days after delivery. Other orders: on completion
Accommodation Booking	Per Commission Schedule	On check-in confirmation
Service Bookings	Per Commission Schedule	On service confirmation

**Release is subject to the Required Procedures being met. Release and other timelines in this Agreement are performed on a commercially reasonable-efforts basis and are subject to clause 38 (Force Majeure).*

4. **Commission** is collected from the customer at checkout through **PawaPay**, on top of the **Merchant's** price, and the **Merchant's** price is released to the **Merchant** in full; **Merchants** never pay **Commission** separately. **PawaPay** applies its own payment gateway fee in addition to **Vero360's Commission**, which is disclosed to **Merchants**.

5. Any erroneous overcharge of **Commission** will be refunded within **48 hours** of confirmation, subject to clause 38.

Payment Release and Wallet Access

5A. Funds are released once the **Transaction** is complete and all **Required Procedures** have been met. Released funds are credited to the **Merchant's Wallet** and are available for **instant withdrawal**, subject to the operational availability of the relevant mobile money network. There is no standard 7-day waiting period.

5B. The 7-day confirmation period applies only to marketplace orders delivered by courier. For such orders, the customer is to confirm receipt after receiving and checking the item, and has **7 days after delivery** to confirm receipt or report an issue. Where receipt is confirmed, funds are released once all **Required Procedures** are met. Where an issue is reported, funds may remain on hold while the dispute is reviewed.

5C. If the customer does not confirm receipt or raise a dispute within 7 days after delivery, the order is treated as accepted and funds are automatically released once all other **Required Procedures** have been met.

5D. **Vero360's** payment hold protection ends once funds are released. This does not affect the rights of any **Merchant** or customer under applicable law.

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New Merchant Promotion

6. New Verified **Merchants** receive zero **Commission** on their first 30 qualifying **Transactions** completed within **90 days** of **Verified Badge** activation.

7. This promotion is limited to one period per individual, business, **NID**, or payment account. **Vero360** may withhold or claw back the benefit of the promotion where it reasonably suspects circumvention, including through duplicate or related-party accounts.

Merchant Subscription Plans

Plan	Monthly Cost	What Is Included
Basic Listing	MWK 0 (Free)	Profile, unlimited listings, order management, built-in chat
Verified Seller	MWK 5,000 one-time	KYC verification, Verified Badge on all listings
Promoted Listing	MWK 5,000–15,000/mo	Top search placement, increased visibility, priority display
Provider Pro	MWK 3,500/month	Full analytics dashboard, revenue reports, priority support, booking insights

PART E — RELATIONSHIP OF THE PARTIES

Independent Contractor Status

8. **Merchants** — including ride-hailing drivers and courier/delivery partners — operate as independent businesses or independent contractors and are not employees, workers, partners, or agents of **Vero360**.

9. **Merchants** retain full discretion over whether, when, and how to accept bookings, and are responsible for their own tax, social security, licensing, and regulatory compliance.

10. Nothing in this **Agreement**, including the standards, ratings, and enforcement provisions in Parts C and H, is intended to or shall be construed as creating an employment, agency, joint venture, or partnership relationship between **Vero360** and any **Merchant**.

11. **Merchants** are not entitled to employee-type benefits from **Vero360**, including leave, pension contributions, or severance.

PART F — LIABILITY, INDEMNITY AND INSURANCE

Limitation of Liability

12. **TO THE MAXIMUM EXTENT PERMITTED BY MALAWIAN LAW, VERO360'S TOTAL AGGREGATE LIABILITY TO A MERCHANT ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), OR OTHERWISE, SHALL NOT EXCEED THE TOTAL COMMISSION PAID BY THAT MERCHANT TO VERO360 IN THE THREE (3) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.**

13. **VERO360 SHALL NOT BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL LOSS, INCLUDING LOSS OF PROFITS, BUSINESS, GOODWILL, OR DATA, ARISING OUT OF THIS AGREEMENT OR USE OF THE PLATFORM.**

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14. **VERO360 IS NOT A PARTY TO, AND ACCEPTS NO LIABILITY FOR, THE UNDERLYING SERVICE OR GOODS PROVIDED BY A MERCHANT TO A CUSTOMER. THE CONTRACT FOR THE UNDERLYING SERVICE IS BETWEEN THE MERCHANT AND THE CUSTOMER.**

Merchant Indemnification

*Each **Merchant** shall indemnify and hold harmless **Vero360**, its directors, officers, and employees from and against all claims, losses, damages, liabilities, and reasonable expenses (including legal fees) arising out of: (a) the **Merchant's** provision of goods or services; (b) the **Merchant's** breach of this **Agreement**; (c) the **Merchant's** violation of applicable law; or (d) any act or omission of the **Merchant**, its employees, or agents in connection with the **Platform**, including in the course of providing ride-hailing, courier, or delivery services.*

Insurance

15. **Merchants** providing ride-hailing, courier, or delivery services must maintain, at their own cost, valid vehicle insurance and any third-party liability insurance required by Malawian law, and must provide proof of such insurance on request.

16. **Vero360** may specify minimum insurance requirements for particular service categories from time to time and may suspend a **Merchant's** access where proof of required insurance is not maintained.

PART G — DATA PROTECTION, CONFIDENTIALITY AND INTELLECTUAL PROPERTY

Data Protection

17. **Vero360** shall collect, store, and process **Merchant KYC** data (including **NID**, licence, and business registration information) as a data controller under the **Data Protection Act, 2024 (Act No. 3 of 2024)**, using reasonable technical and organisational security measures consistent with sections 13 and 35 of that Act.

18. **Vero360** shall retain such data only for as long as necessary for verification, legal, and regulatory purposes, in line with the storage limitation principle under section 12 of the **Data Protection Act, 2024**, and shall cooperate with the **Malawi Communications Regulatory Authority (MACRA)**, designated as Malawi's Data Protection Authority, and any other applicable regulatory authority.

19. **Vero360** shall notify affected **Merchants** without undue delay in the event of a data breach materially affecting their personal information, and shall notify **MACRA** within the timelines prescribed under section 36 of the **Data Protection Act, 2024**. Further detail on **Vero360's** data handling practices is set out in the **Vero360** Privacy Policy.

Confidentiality

*Each party shall keep the other's **Confidential Information** confidential and use it only for the purposes of this **Agreement**, except where disclosure is required by law or regulatory authority.*

Intellectual Property and Content Licence

20. By submitting **Content** for a listing, the **Merchant** grants **Vero360** a non-exclusive, royalty-free, worldwide licence to host, display, reproduce, and use such **Content** on the **Platform** and in related marketing, for as long as the listing remains active and for a reasonable period thereafter for archival purposes.

21. The **Merchant** warrants that it owns or has the necessary rights to submit the **Content** and that it does not infringe any third party's rights.

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22. All trademarks, logos, and branding of **Vero360** remain the exclusive property of **Vero360**. **Merchants** may not use **Vero360's** branding except as expressly authorised in writing.

PART H — MERCHANT RIGHTS, CONDUCT AND ENFORCEMENT

Merchant Rights

The **Merchant** shall have the right to:

23. Receive clear and transparent information about all fees, commissions, and policy changes;
24. Access dispute resolution as both a respondent and a complainant;
25. Appeal any account suspension or termination decision within **7 days**;
26. Receive platform support for technical issues within agreed Service Level **Agreement** timeframes;
27. Request a review of AI fraud flags that affect your account or listings;
28. Access earnings statements and transaction history at any time; and
29. Receive advance notice of material changes to this **Agreement** under clause 29.

Merchant Code of Conduct

The **Merchant** undertakes to:

30. Treat all customers with respect, dignity, and professionalism;
31. Honour all bookings and orders unless a genuine emergency prevents fulfilment;
32. Never request or accept off-platform payments for platform-originated transactions;
33. Never attempt to circumvent the escrow system or **Vero360's** commission;
34. Maintain accurate and up-to-date listings at all times;
35. Report any suspected fraud or suspicious customer behaviour to **Vero360** immediately; and
36. Comply with all sector-specific regulations (food safety, transport licensing, etc.).

Enforcement and Account Suspension

37. **Vero360** shall suspend or terminate a merchant's account based on the following:

Violation	First Offence	Repeat / Serious Offence
Late order response (>30 mins)	Warning notification	Rating impact; listing demotion
Listing inaccuracy	Listing removal + warning	Account suspension pending review
Off-platform payment solicitation	Formal warning + retraining	Immediate account suspension
Fake or manipulated reviews	Review removal + formal warning	Permanent account termination
Fraudulent KYC documents	Immediate suspension + police referral	Permanent ban + legal action
Prohibited item listing	Immediate listing removal + suspension	Permanent ban + police referral

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Violation	First Offence	Repeat / Serious Offence
Rating below 2.0 stars	Account review notification	Suspension until performance improves

38. Enforcement decisions under this clause are made on a reasonable-evidence basis and do not constitute a court judgment or an admission of legal liability by **Vero360**.

39. **Merchants** may appeal any suspension or termination decision by emailing info@vero360.app with the subject 'MERCHANT APPEAL' within **7 days** of notification. Appeals are reviewed within 5 business days by personnel not directly involved in the original decision, on a commercially reasonable-efforts basis subject to clause 38.

Dispute Resolution Process

40. Where a **Merchant** fails to respond to a dispute investigation within **48 hours**, **Vero360** may make a provisional decision based on the evidence available to it.

41. A **Merchant** may still appeal a provisional decision within **7 days** by submitting evidence under clause 21.2.

42. **Vero360's** internal decision under this clause is an operational determination only. It is not a substitute for, and does not preclude, either party's right to pursue resolution through mediation, arbitration, or the courts of Malawi under Part K.

PART I — TERM, TERMINATION AND AMENDMENT

Term

This **Agreement** takes effect on the date the **Merchant's** account is created and continues until terminated in accordance with this Part.

Termination for Cause

Vero360 may suspend or terminate a **Merchant's** account for the violations set out in clause 21, or for any other material breach of this **Agreement**.

Termination for Convenience

43. Either party may terminate a **Merchant's** participation on the **Platform** for convenience, without cause, on **30 days'** written notice.

44. On termination under this clause, any amounts owed to the **Merchant** for completed **Transactions** will be settled in accordance with clause 9.

Effect of Termination

On termination for any reason, the **Merchant's** listings will be deactivated and the **Verified Badge** withdrawn. Clauses relating to liability, indemnification, confidentiality, intellectual property, tax, and governing law survive termination.

Right to Amend This Agreement

45. **Vero360** may amend this **Agreement** at any time. Material changes will be notified to **Merchants** at least **14 days** in advance via the app or the **Merchant's** registered contact details.

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46. Continued use of the **Platform** after the effective date of an amendment constitutes acceptance of it. A **Merchant** who does not accept a material change may terminate this **Agreement** without penalty before the change takes effect.

47. Changes to the **Commission Schedule** follow the specific notice period in clause 3 of Part D, which takes precedence over clause 27.1 for that purpose.

PART J — TAX OBLIGATIONS

In compliance with the **Taxation Act (Cap. 41:01)** administered by the **Malawi Revenue Authority (MRA)**:

48. **Merchants** are solely responsible for declaring all platform earnings to **MRA**

49. **Vero360** will provide earnings statements upon request for tax filing purposes

50. **Merchants** earning above the **MRA** income threshold must be registered for income tax

51. **Vero360** will cooperate fully with **MRA** audits involving merchant transaction data

52. VAT-registered merchants must ensure their pricing and invoicing is VAT-compliant

PART K — DISPUTE RESOLUTION AND GOVERNING LAW

Governing Law

This **Agreement** is governed by the laws of the Republic of Malawi. Regulatory compliance obligations under **MACRA** (including as Malawi's Data Protection Authority under the **Data Protection Act, 2024**), **RBM**, **MRA**, and **MBRS** are incorporated by reference.

Dispute Resolution

53. The parties shall first attempt to resolve any dispute arising out of this **Agreement** through good-faith negotiation, including through the internal process in clause 22.

54. If a dispute is not resolved within **30 days** of being raised, either party may refer it to mediation before a mutually agreed mediator in Malawi.

55. If mediation does not resolve the dispute within a further **30 days**, either party may pursue the matter before an arbitrator chosen by both parties to this agreement and where the parties are not able to agree, the Registrar of the Malawi International Arbitration Centre shall appoint an arbitrator.

56. The determination of the arbitrator shall be final and binding.

57. The **Arbitration Act** shall apply to this agreement.

PART L — GENERAL PROVISIONS

Entire Agreement

This **Agreement** constitutes the entire agreement between the parties regarding its subject matter and supersedes all prior discussions and agreements on that subject.

Severability

If any provision of this **Agreement** is held invalid or unenforceable, the remaining provisions continue in full force and effect.

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No Waiver

A failure by either party to enforce any provision of this **Agreement** is not a waiver of the right to enforce it later.

Assignment

Vero360 may assign or transfer this **Agreement**, including in connection with a merger, acquisition, or sale of assets. A **Merchant** may not assign this **Agreement** without **Vero360's** prior written consent.

Notices

Notices under this **Agreement** may be given via the **Platform**, registered email, or registered phone number, and are deemed received when sent, subject to proof of delivery where disputed.

Third-Party Rights

This **Agreement** does not confer any rights on a person who is not a party to it.

Language

This **Agreement** is issued in English. Where a translated version is provided, the English version prevails in the event of any conflict.

Force Majeure

58. A "**Force Majeure Event**" means any event beyond a party's reasonable control, including failures or delays of third-party payment processors (e.g. **PawaPay**), telecommunications outages, system downtime, natural disaster, or government action.

59. Neither party is liable for a failure or delay in performance caused by a **Force Majeure Event**, provided the affected party notifies the other as soon as reasonably practicable and uses reasonable efforts to mitigate the impact.

Acknowledgment

By registering as a **Merchant** on the **Vero360** Super App, completing **KYC** verification, or otherwise using the **Platform**, you acknowledge that you have read, understood, and agree to be bound by this **Agreement**.

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MERCHANDISE LISTING STANDARDS

Annex to the Vero360 Merchant Terms & Conditions

Relationship to the Merchant Agreement

These **Merchandise** Listing **Standards** ("**Standards**") supplement Part C (Listing **Standards** & **Merchant** Obligations) of the **Vero360 Merchant** Terms & Conditions and apply specifically to **Vendors** listing physical, tangible merchandise ("**Merchandise**") for sale through the **Vero360** e-commerce category. Where these **Standards** conflict with the general **Merchant** Terms & Conditions on a matter specific to physical goods, these **Standards** prevail.

1. Purpose & Scope

1.1 These **Standards** exist to ensure that **Merchandise** listed on **Vero360** is accurately described, safe, legally compliant, and fairly priced, protecting both customers and **Vendors** and reducing disputes, returns, and regulatory risk.

1.2 These **Standards** apply to every listing of physical merchandise, including new, used, refurbished, and handmade goods, regardless of category or price point.

1.3 These **Standards** do not apply to services, bookings, or on-demand transport listings, which are governed separately by Parts B and C of the **Merchant** Terms & Conditions.

2. General Listing Requirements

Every **Merchandise** listing must include the following elements before it can go live:

Element	Requirement
Title	Accurately identifies the product, brand (if genuine), and key variant (e.g. size/colour). No unrelated keywords added to manipulate search.
Description	Full, honest description including material, dimensions, function, and any defects (for used/refurbished items).
Photos	Minimum 3 real photos of the actual item for sale — see Section 3.
Price	Stated in MWK, inclusive of any mandatory taxes; shipping/delivery cost shown separately.
Category	Listed under the correct product category and sub-category.
Condition	Declared as New, Refurbished, or Used, per the grading definitions in Section 5.
Stock quantity	Reflects genuine available quantity; listing must be deactivated or marked out-of-stock when unavailable.
Variants	Each size, colour, or model variant clearly listed with any price or stock differences.
Origin / Seller location	Vendor's dispatch location or warehouse region specified for delivery estimation.

3. Product Photography Standards

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3.1 All images must be genuine photographs of the actual item being sold. Stock photos, manufacturer catalogue images, or images copied from other websites are not permitted unless the **Vendor** is an authorised distributor and discloses this in the listing.

3.2 Each listing requires a minimum of 3 images, including at least one image showing the item as a whole and one close-up of any distinguishing detail, label, or defect.

3.3 Images must be well-lit, in focus, and show the item against a plain or clearly representative background. **Vendor** logos or watermarks are permitted only in a corner and must not obscure the product.

3.4 For used or refurbished items, photos must show visible wear, damage, or repairs, if any.

3.5 Minimum recommended resolution: 800 x 800 pixels.

4. Pricing & Currency Requirements

4.1 All prices must be stated in Malawian Kwacha (MWK) and must be the actual price a customer will pay for the item, exclusive of separately disclosed delivery charges.

4.2 **Vendors** must not display a false "original price" or manufactured discount that misrepresents the item's normal selling price.

4.3 Bulk or wholesale pricing tiers, if offered, must be clearly stated on the listing.

5. Product Condition & Grading

Grade	Definition
New	Unused, in original packaging (where applicable), with all original accessories and no defects.
Refurbished	Previously used or returned, professionally restored to full working condition, with any repairs or replaced parts disclosed.
Used — Like New	Previously owned, shows no visible signs of wear, fully functional.
Used — Good	Previously owned, shows minor signs of wear, fully functional, any cosmetic issues disclosed.
Used — Fair	Previously owned, shows noticeable wear, functional but with disclosed limitations.

5.1 Misrepresenting the condition of an item is a listing inaccuracy under the **Merchant** Terms & Conditions and is subject to the enforcement action in Section 12.

6. Variants, Sizing & Specifications

6.1 Where applicable, listings must state accurate weight and dimensions (length x width x height) to support delivery cost calculation and fragile-item handling.

6.2 Clothing and footwear listings must state sizes using a recognised sizing standard (e.g. UK/EU/US) and, where possible, a size guide or measurements.

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6.3 Electronics and appliances must list key specifications (power rating, capacity, compatibility) and country/region of intended use, where relevant to functionality.

7. Inventory & Stock Accuracy

7.1 **Vendors** must keep stock quantities up to date and deactivate or mark listings as out-of-stock promptly once inventory is depleted.

7.2 Repeated acceptance of orders for out-of-stock **Merchandise** is treated as a listing accuracy violation under Section 12.

8. Packaging & Shipping Information

8.1 **Vendors** must package **Merchandise** appropriately for its nature (e.g. cushioned packaging for fragile items, sealed packaging for consumables) to prevent damage in transit.

8.2 Listings must state estimated handling time (time from order to dispatch) separately from delivery/courier time.

8.3 Perishable or temperature-sensitive **Merchandise** must be clearly labelled as such, with appropriate handling instructions provided to the courier or delivery partner.

9. Prohibited Merchandise

The **Merchant** shall not sell or list the following items on the App:

- Illegal drugs, narcotics, or controlled substances prohibited under the **Pharmacy, Medicines and Poisons Act**
- Firearms, ammunition, explosives, and unlicensed weapons of any kind
- Counterfeit or pirated goods, or items infringing a third party's trademark, copyright, or patent
- Stolen goods or goods without lawful title to sell
- Alcohol or tobacco products listed without a valid **MRA** licence disclosed on the **Vendor's** account
- Expired food, cosmetics, or medicine, and any recalled or banned product
- Wildlife products prohibited under the **Wildlife Conservation Act** (e.g. ivory, protected species parts)
- Live animals, except by **Vendors** specifically verified and licensed to sell livestock or pets
- Prescription medicines or medical devices without the required pharmacy or health authority licence
- Hazardous materials (flammable, corrosive, or toxic substances) without required safety certification and labelling
- Adult, sexually explicit, or obscene material
- Human remains, body parts, or bodily fluids
- Any item whose sale contravenes a Malawian law, licence requirement, or professional standard

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10. Restricted Merchandise — Additional Verification Required

The following categories may be listed only after the **Vendor** provides additional documentation, verified by **Vero360's** operations team:

Category	Additional Requirement
Alcohol & tobacco	Valid MRA licence; age-verification at delivery per Section 11
Food & beverages (packaged/prepared)	Health/food-handling certification where required by local authority; expiry dates listed
Health, beauty & cosmetic products	Ingredient list; regulatory approval reference where applicable (e.g. Pharmacy, Medicines and Poisons Board)
Baby & child products	Compliance with applicable safety standards; no secondhand car seats or cribs unless explicitly permitted
Secondhand electronics & mobile devices	Proof of lawful ownership; IMEI/serial number disclosed where applicable
Agro-chemicals, fertilisers & pesticides	Valid distribution licence; safety data sheet available on request

11. Age-Restricted Products

11.1 **Merchandise** restricted by law to buyers of a minimum age (including alcohol and tobacco) must be flagged as age-restricted at listing level.

11.2 **Vendors** and delivery partners must verify the recipient's age (e.g. by checking a valid **NID**) at the point of delivery for any age-restricted item, and must refuse delivery where age cannot be confirmed.

12. Product Safety & Compliance

12.1 **Merchandise** must comply with applicable Malawi Bureau of **Standards** requirements and any sector-specific safety regulation.

12.2 Listings for food, cosmetics, and health products must display expiry or best-before dates, and **Vendors** must not sell expired stock.

12.3 Where a country of origin, ingredient list, or safety warning is legally required on packaging, the same information must be reflected in the online listing.

12.4 **Vero360** may request evidence of compliance (certification, licence, or test report) for any listing and may suspend a listing pending verification.

13. Returns, Refunds & Warranty Disclosure

13.1 Each listing must disclose the **Vendor's** return and refund policy for that item, including any conditions (e.g. unopened packaging, time limits).

13.2 Where a manufacturer's warranty applies, the listing must state the warranty duration and how the customer can claim it.

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13.3 Items sold as "final sale" or non-returnable must state this clearly before purchase; this does not override any non-excludable statutory consumer right.

14. Listing Review & Moderation

14.1 New listings are subject to automated checks against these **Standards** (e.g. missing fields, prohibited keywords) before going live.

14.2 **Vero360** may conduct periodic spot audits of live listings and may act on customer reports of inaccurate, unsafe, or prohibited **Merchandise**.

14.3 **Vero360** may remove or suspend a listing that reasonably appears to breach these **Standards** pending **Vendor** clarification, consistent with the dispute process in the **Merchant** Terms & Conditions.

15. Enforcement

Violation	First Offence	Repeat / Serious Offence
Missing required listing fields	Listing held pending correction	Listing rejected; repeated failures may limit new listing privileges
Misleading title, description, or price	Listing removal + warning	Account suspension pending review
Stock photos or images not of the actual item	Listing removal + warning	Account suspension pending review
Condition misrepresentation	Listing removal + warning; affected orders refunded	Account suspension pending review
Restricted category listed without required documentation	Immediate listing removal	Account suspension pending verification
Prohibited Merchandise listed	Immediate listing removal + suspension	Permanent ban + referral to police/regulator as applicable
Selling expired or recalled goods	Immediate listing removal + suspension	Permanent ban + referral to relevant regulator

15.1 Enforcement decisions under these **Standards** follow the same appeal rights and process set out in the **Merchant** Terms & Conditions.

16. Amendments

16.1 **Vero360** may update these **Standards** from time to time, including to add new restricted or prohibited categories in response to regulatory change. Material changes will be notified in accordance with the amendment clause of the **Merchant** Terms & Conditions.